

Constitution

Preamble:

We, the undersigned, wishing to secure for ourselves the pleasures and benefits of an association of persons commonly interested in Amateur Radio, constitute ourselves the NYC Resistor Amateur Radio Club of Brooklyn, NY and enact this constitution as our governing law. It shall be our purpose to further the exchange of information and cooperation between members, to promote radio knowledge, fellowship, and the hacker ethos of exploration, curiosity, sharing, and innovation, and to so conduct club programs and activities as to advance the general interest and welfare of Amateur Radio in the community.

Article I

Membership

All persons interested in Amateur Radio communications shall be eligible for membership. Membership shall be by application and election upon such terms as the club shall provide in its By-Laws.

Membership may not be denied because of race, creed, color, religion, gender, sexual orientation, political affiliation, marital status or any other reason that would be biased or prejudicial.

Article II

Officers

Section. 1. Offices

The officers of this club shall be President, Vice-President, Secretary and Treasurer.

Section. 2. Election

The officers of this club shall be elected for a term of one year by ballot of the members present, provided there be a quorum, at the annual meeting.

Section 3. Term limits

An individual may not serve more than three consecutive terms as an officer.

An individual may not hold more than one office during the same term.

Section. 4. Vacancies

Vacancies occurring between elections must be filled by special elections at the first regular meeting following the withdrawal or resignation.

Section 5. Eligibility

In order to hold an office an individual must be a member in good standing for at least one year and hold a valid Amateur Radio license.

Section 6. Resignation

Any officer may resign their position in writing at which time all records and assets of the club will be turned over to the President or Vice President.

Section 7. Removal of Officers

Officers may be removed from office for cause, upon written petition of six (6) or more members presented to the President or Vice President.

After investigation the petition will be presented to the membership at the next regular meeting of the club and a voted on by the voting membership.

Removal of an officer requires a three-fourths vote of the full voting membership.

Article III

Duties of Officers

Section. 1. President

The President shall preside at all meetings, and conduct them according to the rules adopted. They shall enforce due observance of this Constitution and By-Laws; decide all questions of order; sign all official documents adopted by the club, and perform all other duties pertaining to the office of President.

Section. 2. Vice President

The Vice-President shall assume all the duties of the President in their absence. In addition, they shall organize club activities, plan and recommend contests for operating benefits, and advance club interest and activity as approved by the club.

Section. 3. Secretary

The Secretary shall keep a record of the proceedings of all meetings, keep a roll of members and attendees, submit membership applications, carry on all correspondence, read communications at each meeting, and email written meeting notices to each member. At the expiration of their term they shall turn over all items belonging to the club to their successor.

Section. 4. Treasurer

The Treasurer shall receive and receipt for all monies paid to the club; keep an accurate account of all monies received and expended; pay no bills without proper authorization (by the club or its officers constituting a business committee). At the end of each quarter they shall submit an itemized statement of disbursements and receipts. At the end of their term they shall turn over everything in their possession belonging to the club to their successor.

Article IV

Meetings

The By-Laws shall provide for regular and special meetings. At meetings, a minimum of one-fourth of the voting membership shall constitute a quorum for the transaction of business.

Article V

Dues

The club, by majority vote of those present at any regular meeting, may levy upon the general membership such dues or assessments as shall be deemed necessary for the business of the organization. Non-payment of such dues or assessments shall be cause for expulsion from the club within the discretion of the membership.

Article VI

Membership Assistance

The club, through designated Committees, will allow members to organize and directly participate in special topic groups, outings, and activities.

Article VII

Club Call sign

The club has obtained a club call sign as provided by FCC rules Part 97: N2YCR.

The President shall assign trusteeship of the club call sign.

The trustee shall:

Be a member of the club in good standing

Meet FCC requirements.

Not had their Radio Amateur license revoked or sanctioned at any time.

Article VIII

Dissolution of The Club

Section 1. Termination of Operations

In the event that the Board of Director votes that the Club should be dissolved the motion for dissolution must receive more than two thirds vote of the full membership to pass.

Section 2. Disposition of Assets

The Board of Directors shall handle the disbursement of all assets of the club.

No member or group of members shall receive benefit from the assets.

All equipment will be transferred to NYC Resistor.

All remaining cash will be transferred to NYC Resistor.

Article IX

Amendments

This constitution or By-Laws may be amended by a two-thirds vote of the total voting membership. Proposals for amendments shall be submitted in writing at a regular meeting and shall be voted on at the next following regular meeting, provided all voting members have been noticed by email of the intent to amend the constitution and/or By-Laws at said meeting.

Constitution revision: 2025-12-27

By-Laws

1. Secretary

It shall be the duty of the Secretary to keep the constitution and By-Laws of the club and have the same with them at every meeting. They shall note all amendments, changes and additions on the constitution and shall permit it to be consulted by members upon request.

2. Membership

In-person attendance to at least 1 regular meeting of the club is the requirement for membership.

In-person attendance to at least 6 out of the 12 most recent regular meetings of the club and the submission of an affidavit to the Secretary indicating a desire to engage with the club are the requirements for voting membership. Failure to attend shall automatically remove the individual from the list of voting members maintained by the Secretary, but they may resubmit a new affidavit once they have once again attended a sufficient number of regular meetings. The Secretary may, in the case of insufficient records, declare a prospective voting member to have attended the necessary number of regular meetings. However, in this special case of insufficient records a single officer may unilaterally deny this declaration. Any person may be denied or removed as a voting member by a 3/4 majority vote of the officers.

Membership includes all club privileges, though only voting membership includes the rights to hold a club office, vote for club officers, and vote to update the bylaws and constitution.

Members must abide by the NYC Resistor Code of Conduct:

<https://www.nycresistor.com/participate/>

3. Meetings

Regular meetings shall be held on the 4th Wednesday of each calendar month. Special meetings may be called by the President upon the written request of any five club members. Notices shall be sent to members concerning special meetings and the business to be transacted. Such notices shall be sent so that they arrive not less than 24 hours before the meeting.

4. Dues Fees and Assessments

No dues, fees, or club funds may be spent on animal products.

5. Elections

Officer elections will be held annually at the regular March meeting.

Officers will assume their elected office April of that year.

Nomination Committee

The President will appoint a nomination committee 2 months prior to elections.

The committee will be charged with finding qualified candidates to run for office.

The committee will present a ballot to the President at the regular meeting one month prior to elections at which time the President will entertain a motion for nominations and to accept the ballot.

The final ballot will be published and made available to all club members by email.

The president will dissolve the nomination committee after the annual elections.

Voting

Voting will be done electronically and will use the STAR Voting system (see <https://www.starvoting.org/>).

In the case of an unopposed slate the President may entertain a motion for the Secretary to cast a single ballot.

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